

SOLVED PRACTICE WORKBOOK

Regulatory State and Quasi Judicial Institutions - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Regulatory State and Quasi Judicial Institutions	
1. THE NEW REGULATION COMMISSION	2. QUASI JUDICIAL INSTITUTIONS
3. COUNTRY OF ORIGIN: INDIA	4. FUNCTIONAL: QUASI JUDICIAL
5. REGULATORY POWER	6. POWER OF APPEAL
7. POWER: REGULATORY AND QUASI JUDICIAL	8. POWER OF APPEAL
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Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Regulatory State and Quasi Judicial Institutions - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which classification is legally accurate?

- A. Statutory describes legal source; regulatory describes function; quasi-judicial describes a decisional character.
- B. Every commission is constitutional.
- C. Every act of a regulator is quasi-judicial.
- D. Every statutory body regulates a market.

Answer: A

Explanation: The three axes overlap but are not synonyms. The remaining choices confuse legal source, function, procedure or remedy.

OM2. Why did the regulatory state expand after liberalisation?

- A. Liberalisation eliminated state responsibility.
- B. Reduced direct production increased the need for specialised rules, access, supervision and market correction.
- C. Courts assumed all licensing work.
- D. Only constitutional bodies may regulate private firms.

Answer: B

Explanation: Regulation changes the technique of state action rather than removing the State. The remaining choices confuse legal source, function, procedure or remedy.

OM3. What limits delegated regulatory legislation?

- A. A consultation paper even without statutory authority.
- B. An executive wish to amend the Constitution.
- C. The parent Act's policy, purpose, scope and prescribed procedure.
- D. The regulator's technical expertise alone.

Answer: C

Explanation: Essential legislative policy cannot be abdicated. The remaining choices confuse legal source, function, procedure or remedy.

OM4. Which sequence best represents a regulatory cycle?

- A. Consultation, automatic conviction and imprisonment.
- B. Licence, constitutional amendment and decree.
- C. Investigation, secret penalty and no appeal.
- D. Rule or licence, monitoring, investigation, notice, hearing, reasoned order and review.

Answer: D

Explanation: Different stages require different safeguards. The remaining choices confuse legal source, function, procedure or remedy.

OM5. Which is ordinarily part of natural justice?

- A. Notice, fair opportunity, absence of bias and reasons for an adverse order.
- B. A full CPC trial in every case.
- C. An appeal instead of reasons.
- D. No hearing whenever expertise is claimed.

Answer: A

Explanation: Fairness is flexible but arbitrariness is not. The remaining choices confuse legal source, function, procedure or remedy.

OM6. Which statement correctly distinguishes institutions?

- A. Tribunals exercise constituent power.
- B. A regulator governs a sector; a tribunal primarily adjudicates specialised disputes; courts retain constitutional review.
- C. Every regulator is its own appellate tribunal.
- D. A commission's name proves its powers.

Answer: B

Explanation: Function and statutory route, not labels, control classification. The remaining choices confuse legal source, function, procedure or remedy.

OM7. What does RBI's legal status illustrate?

- A. All RBI action goes to SAT.
- B. RBI is created by the Constitution.
- C. RBI is a statutory central bank under the RBI Act, with banking powers also arising under other statutes.
- D. The Governor derives power from Article 324.

Answer: C

Explanation: RBI's source and each specific power must be separately traced. The remaining choices confuse legal source, function, procedure or remedy.

OM8. Which SEBI appeal chain is correct for appealable orders?

- A. SEBI to TDSAT to High Court.
- B. SEBI directly to CCI.
- C. SEBI to APTEL to Parliament.
- D. SEBI or adjudicating officer to SAT, followed by the statutory Supreme Court route.

Answer: D

Explanation: SAT is the specialised securities appellate tribunal. The remaining choices confuse legal source, function, procedure or remedy.

OM9. Which TRAI/TDSAT statement is correct?

- A. TRAI regulates and recommends within its Act; TDSAT handles specified disputes and appeals.
- B. TRAI is a constitutional court.
- C. TDSAT makes telecom policy for Cabinet.
- D. TRAI and TDSAT are the same body.

Answer: A

Explanation: The 2000 amendment separated adjudicatory work. The remaining choices confuse legal source, function, procedure or remedy.

OM10. What is prohibited by Section 4 of the Competition Act?

- A. Every merger by an MNC.
- B. Abuse of a dominant position, not dominance by itself.
- C. All large market shares.
- D. Profits above an administrative ceiling.

Answer: B

Explanation: Relevant market, dominance and abusive conduct are distinct steps. The remaining choices confuse legal source, function, procedure or remedy.

OM11. Which CCI appeal route is correct?

- A. CCI orders go to SAT.
- B. CCI orders go to TDSAT.
- C. Appealable CCI orders go to NCLAT and then the Supreme Court under the Act.
- D. Every prima-facie direction is immediately a final appeal.

Answer: C

Explanation: Statutory stage determines hearing and appealability. The remaining choices confuse legal source, function, procedure or remedy.

OM12. Which electricity-regulation route is correct?

- A. SERCs are subordinate offices of CERC.
- B. CERC appeals go to SAT.
- C. APTEL fixes every tariff at first instance.
- D. Appealable CERC or SERC orders go to APTEL and then the Supreme Court.

Answer: D

Explanation: Central and State commissions have allocated statutory fields. The remaining choices confuse legal source, function, procedure or remedy.

OM13. What is outside PNGRB's statutory production field?

- A. Production of crude oil and natural gas.
- B. Specified storage and distribution.
- C. Petroleum-product marketing.
- D. Specified pipeline transportation.

Answer: A

Explanation: The Act's exclusion creates a recurring close-option trap. The remaining choices confuse legal source, function, procedure or remedy.

OM14. Why is a statutory appeal not the same as judicial review?

- A. A finality clause removes Articles 226 and 227.
- B. An appeal may revisit merits within statute; review primarily polices legality, jurisdiction, fairness and rights.
- C. Review always retries every fact.
- D. An appeal exists without legislation.

Answer: B

Explanation: Remedy and standard of scrutiny must be separated. The remaining choices confuse legal source, function, procedure or remedy.

OM15. What follows from L. Chandra Kumar?

- A. Technical members may overrule constitutional courts.
- B. All tribunal appeals begin in district courts.
- C. Tribunalisation cannot exclude the constitutional judicial-review jurisdiction of High Courts and the Supreme Court.
- D. Every tribunal is unconstitutional.

Answer: C

Explanation: The judgment preserves a constitutional review floor. The remaining choices confuse legal source, function, procedure or remedy.

OM16. What does CCI v SAIL principally caution?

- A. Every investigative step is a final penalty.
- B. CCI lacks all inquiry power.

- C. Dominance is automatically abusive.
- D. The statutory stage and character of a CCI act determine hearing and appealability.

Answer: D

Explanation: Do not treat preliminary and final acts alike. The remaining choices confuse legal source, function, procedure or remedy.

OM17. Which arrangement most directly reduces decisional bias?

- A. Separate investigation and adjudication teams with disclosure, recusal and external appeal.
- B. A renewable one-month tenure.
- C. Secret evidence shared only internally.
- D. Elimination of reasoned orders.

Answer: A

Explanation: Functional separation targets confirmation bias. The remaining choices confuse legal source, function, procedure or remedy.

OM18. Which list captures multidimensional independence?

- A. Only constitutional status.
- B. Appointment, tenure, removal, finance, staff/data and decisional autonomy.
- C. Only salary and office location.
- D. Freedom from every form of reporting.

Answer: B

Explanation: Formal status alone does not establish actual independence. The remaining choices confuse legal source, function, procedure or remedy.

OM19. Which is an example of cognitive capture?

- A. Consumers file an appeal.
- B. A court sets aside an ultra vires rule.
- C. A regulator gradually adopts the regulated industry's worldview through repeated dependence and interaction.
- D. Parliament receives an annual report.

Answer: C

Explanation: Capture need not involve bribery. The remaining choices confuse legal source, function, procedure or remedy.

OM20. Why can excessive insulation worsen capture?

- A. It automatically constitutionalises the regulator.
- B. It eliminates expertise.
- C. It converts regulation into legislation.
- D. It may reduce public challenge while preserving privileged industry access and information dependence.

Answer: D

Explanation: Independence must be paired with transparency and review. The remaining choices confuse legal source, function, procedure or remedy.

OM21. Which accountability tool is compatible with independence?

- A. Published reasons, legislative reporting, consultation, conflict rules and independent appeal.
- B. Removal at pleasure after each order.
- C. No disclosure of decisive evidence.
- D. Ministerial dictation of individual outcomes.

Answer: A

Explanation: Accountability is answerability under law, not case control. The remaining choices confuse legal source, function, procedure or remedy.

OM22. When does a decision become quasi-judicial in character?

- A. Whenever an office is called a commission.
- B. When statutory power affects rights and requires an adjudicatory application of standards with fair procedure.
- C. Whenever advice is non-binding.
- D. Only when the Constitution names the body.

Answer: B

Explanation: Character depends on function and legal duty. The remaining choices confuse legal source, function, procedure or remedy.

OM23. Which proposition about civil-court powers is correct?

- A. It creates inherent constitutional jurisdiction.
- B. It makes every recommendation binding.
- C. Possessing some civil-court powers does not by itself convert a regulator or commission into a court.
- D. It abolishes statutory limits.

Answer: C

Explanation: Incidental procedural powers do not determine institutional identity. The remaining choices confuse legal source, function, procedure or remedy.

OM24. How should urgent interim regulatory action be assessed?

- A. A later hearing is always forbidden.
- B. Interim action needs no statute.
- C. Urgency permanently excludes fairness.
- D. Urgency may tailor timing, but authority, proportionality and an effective opportunity to contest remain relevant.

Answer: D

Explanation: Natural justice is contextual, not extinguished. The remaining choices confuse legal source, function, procedure or remedy.

OM25. Which statement about reasons is strongest?

- A. Reasons connect evidence, statutory standards and outcome, enabling appeal and review.
- B. Reasons can cure lack of jurisdiction.
- C. Reasons are merely decorative.
- D. Reasons are unnecessary where experts decide.

Answer: A

Explanation: A speaking order disciplines power but cannot create power. The remaining choices confuse legal source, function, procedure or remedy.

OM26. What is regulatory impact assessment designed to test?

- A. Whether consultation comments are binding votes.
- B. Expected benefits, costs, alternatives, distributional effects and implementation risks before or during review.
- C. Whether a regulator can amend its parent Act.
- D. Whether courts should set tariffs.

Answer: B

Explanation: RIA improves evidence and proportionality, not legal competence. The remaining choices confuse legal source, function, procedure or remedy.

OM27. What is the best first step in digital-platform regulation?

- A. Merge all regulators without legislation.

- B. Treat a draft Bill as enacted.
- C. Identify the specific harm and map it to the competent statute and authority.
- D. Assume every platform is a public utility.

Answer: C

Explanation: Harm-to-law mapping prevents mandate conflation. The remaining choices confuse legal source, function, procedure or remedy.

OM28. Which feature supports network-industry regulation?

- A. No consumer interest.
- B. A complete lack of technical standards.
- C. Absence of sunk costs.
- D. Natural-monopoly bottlenecks combined with competitive services and access obligations.

Answer: D

Explanation: Telecom, power and pipelines require bottleneck-access design. The remaining choices confuse legal source, function, procedure or remedy.

OM29. Which distinction best separates economic and social regulation?

- A. Economic regulation often targets tariff, entry or market power; social regulation often targets health, safety, environment or professional quality.
- B. Social regulation never affects markets.
- C. Only courts perform social regulation.
- D. Economic regulation is always constitutional.

Answer: A

Explanation: The categories overlap but identify different primary harms. The remaining choices confuse legal source, function, procedure or remedy.

OM30. What makes a multi-member commission potentially useful?

- A. Guaranteed speed in every case.
- B. Diverse expertise, deliberation, continuity and reduced single-person capture.
- C. Automatic independence from statute.
- D. Elimination of vacancies.

Answer: B

Explanation: Collegiality helps only with sound quorum and conflict design. The remaining choices confuse legal source, function, procedure or remedy.

OM31. Which weakness can a multi-member commission still face?

- A. Constitutional prohibition on voting.
- B. Mandatory judicial membership in all regulators.
- C. Strategic vacancies, chair domination, factionalism or diluted responsibility.
- D. Inability to issue any reasoned order.

Answer: C

Explanation: Institutional form does not ensure performance. The remaining choices confuse legal source, function, procedure or remedy.

OM32. What is institution-based regulation?

- A. A ban on cross-sector coordination.
- B. A single law for all human activity.
- C. Regulation by constitutional courts only.
- D. Supervision organised around a class of institutions rather than the economic activity alone.

Answer: D

Explanation: Compare it with activity-based regulation and regulatory arbitrage. The remaining choices confuse legal source, function, procedure or remedy.

OM33. Why may activity-based regulation reduce arbitrage?

- A. Substitutable activities face similar rules even when supplied by differently labelled entities.
- B. It abolishes prudential supervision.
- C. It always requires one global regulator.
- D. It removes legislative competence.

Answer: A

Explanation: It trades arbitrage reduction for coordination complexity. The remaining choices confuse legal source, function, procedure or remedy.

OM34. When is a specialised tribunal most defensible?

- A. A ministry wants to avoid all courts.
- B. A stable technical caseload, credible independence, adequate volume, infrastructure and coherent review exist.
- C. Vacancies are permanent.
- D. Its name contains 'appellate'.

Answer: B

Explanation: Institutional fit matters more than tribunal proliferation. The remaining choices confuse legal source, function, procedure or remedy.

OM35. Which reform best addresses overlapping regulators?

- A. Remove publication duties.
- B. Let each claim unlimited jurisdiction.
- C. Clarify mandates, establish referral/coordination protocols and preserve reasoned appeal routes.
- D. Treat all consultations as binding law.

Answer: C

Explanation: Coordination should not erase statutory boundaries. The remaining choices confuse legal source, function, procedure or remedy.

OM36. What is the sound constitutional verdict on expert regulation?

- A. Technical complexity suspends fundamental rights.
- B. Expertise displaces parliamentary law.
- C. Independence means immunity from courts.
- D. Expertise is legitimate when bounded by mandate, fairness, reasons, accountability and review.

Answer: D

Explanation: Legitimacy comes from a complete institutional chain. The remaining choices confuse legal source, function, procedure or remedy.

Remedial MCQs 1-12 - Common Error Repair

RM1. A notification is cited as proof that a regulator has constitutional status. What is the repair?

- A. Identify the parent Act or constitutional provision; an executive notification cannot by itself create constitutional status.
- B. Assume every notified body is constitutional.
- C. Use the body's name as proof.
- D. Treat a press release as the parent law.

Answer: A

Remedial explanation: Legal source must be proved.

RM2. A student writes that all dominant firms violate competition law. What is the repair?

- A. Ignore Section 4.
- B. Prove relevant market, dominance and abusive conduct separately.
- C. Treat consumer popularity as abuse.
- D. Replace dominance with turnover alone.

Answer: B

Remedial explanation: Dominance is not the offence.

RM3. A student sends a TRAI order to SAT. What is the repair?

- A. Assume no remedy exists.
- B. Use NCLAT because TRAI is a commission.
- C. Check the TRAI Act and the TDSAT route for the specified order or dispute.
- D. Use APTEL because telecom is a utility.

Answer: C

Remedial explanation: Appeal chains are statute-specific.

RM4. A student claims PNGRB regulates crude-oil production. What is the repair?

- A. Exclude marketing and sale.
- B. Treat PNGRB as a constitutional body.
- C. Include all petroleum activity.
- D. Separate excluded production from regulated downstream and midstream activities.

Answer: D

Remedial explanation: Read the parent Act's express boundary.

RM5. A regulator relies on undisclosed decisive material. What is the strongest objection?

- A. The affected party lacked an effective opportunity to meet the case, subject to lawful contextual limits.
- B. Experts never need disclosure.
- C. An annual report cures the defect.
- D. Only legislatures can breach fairness.

Answer: A

Remedial explanation: Disclosure supports a meaningful hearing.

RM6. A ministry calls an individual adjudicatory outcome 'policy guidance.' What is the repair?

- A. All policy is unconstitutional.
- B. Distinguish general lawful policy from case-specific interference with an independent decision.
- C. All adjudication is ministerial.
- D. Independence bars legislative amendment.

Answer: B

Remedial explanation: Calibrated independence preserves democratic policy and decisional fairness.

RM7. A student says judicial review is a full merits rehearing. What is the repair?

- A. Treat every finality clause as absolute.
- B. Claim courts never inspect evidence.
- C. Separate constitutional legality review from the scope of the statutory merits appeal.
- D. Delete all review references.

Answer: C

Remedial explanation: Scope depends on remedy and governing law.

RM8. A regulator both investigates and decides. Is that automatically void?

- A. Yes, constitutional separation always requires separate agencies.
- B. Yes, unless Parliament approves each order.
- C. No, therefore bias is irrelevant.
- D. No; combined functions may be lawful, but functional separation and fair procedure become important safeguards.

Answer: D

Remedial explanation: Use a risk-and-safeguard analysis.

RM9. A consultation paper is described as current law. What is the repair?

- A. Date it and label it as proposal or consultation unless enacted or validly notified.
- B. Ignore the date.
- C. Treat all official documents as law.
- D. Convert recommendations into penalties.

Answer: A

Remedial explanation: Current-status precision is a hard gate.

RM10. A student calls CPCB an executive body. What is the repair?

- A. NGT is an executive order.
- B. CPCB is statutory under the Water Act, 1974; distinguish it from NGT's adjudicatory role.
- C. Both are constitutional courts.
- D. CPCB hears every environmental appeal.

Answer: B

Remedial explanation: Source and function must both be stated.

RM11. A student claims independence means no Parliament or RTI scrutiny. What is the repair?

- A. Remove all accountability.
- B. Make every regulator a court.
- C. Independence from case pressure coexists with statutory reporting, transparency, audit where applicable and review.
- D. Permit oral ministerial directions in cases.

Answer: C

Remedial explanation: Independence is not immunity.

RM12. A conclusion merely says 'strengthen regulators.' What is the repair?

- A. Add more powers without safeguards.
- B. Demand one super-regulator for every sector.
- C. Use an undated current example.
- D. Match reform to the diagnosed defect: mandate, selection, capacity, conflicts, procedure, appeal or coordination.

Answer: D

Remedial explanation: Executable reform earns marks.

PYQS AND ANSWER PRACTICE

Verified PYQs with executable solutions

PYQ 1 - 2018 Prelims GS-I Q4

Question: How is the National Green Tribunal (NGT) different from the Central Pollution Control Board (CPCB)?

1. The NGT has been established by an Act whereas the CPCB has been created by an executive order of the Government.
2. The NGT provides environmental justice and helps reduce the burden of litigation in the higher courts whereas the CPCB promotes cleanliness of streams and wells, and aims to improve the quality of air in the country.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer: B. Statement 1 is wrong because CPCB is statutory under the Water (Prevention and Control of Pollution) Act, 1974; NGT is statutory under the NGT Act, 2010. Statement 2 correctly distinguishes adjudicatory environmental justice from pollution-control administration.

PYQ 2 - 2018 Prelims GS-I Q23

Question: Consider the following statements:

1. The Food Safety and Standards Act, 2006 replaced the Prevention of Food Adulteration Act, 1954.
2. The Food Safety and Standards Authority of India (FSSAI) is under the charge of Director General of Health Services in the Union Ministry of Health and Family Welfare.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer: A. The 2006 Act consolidated and replaced the earlier food-adulteration regime. FSSAI is a statutory authority under the Ministry, not an office under the charge of DGHS.

PYQ 3 - 2018 GS-II Q12 - 15 marks, 250 words

Question: How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India.

Model answer: Tribunals do transfer specified first-instance or appellate fields from ordinary courts, but they do not constitutionally extinguish judicial review. Articles 323A and 323B permit specialised adjudication; statutes also create sector tribunals such as SAT, TDSAT and APTEL. Expertise, speed and flexible procedure can improve competency. Yet executive influence over appointments, short tenure, vacancies, fragmented benches and an additional appeal layer can reproduce delay and weaken independence. In **L. Chandra Kumar**, the Supreme Court held that High Court review under Articles 226/227 and Supreme Court review under Article 32 form part of the basic structure; tribunal decisions remain subject to that constitutional floor. Valid tribunalisation therefore requires a clear legislative field, judicially credible appointments and tenure, adequate infrastructure, reasoned orders and a coherent appeal chain. The sound conclusion is qualified: tribunals may replace ordinary-court jurisdiction within their statutory field, but cannot become substitutes for constitutional courts.

Why this earns marks: It answers both “curtail” and “validity/competency,” uses the constitutional provisions and controlling case, and gives a balanced institutional test.

How to improve this answer: Add one field-specific example and distinguish a merits appeal from High Court legality review; do not turn the answer into a list of tribunal names.

Compression: 150 words: retain Articles 323A/323B, expertise, three independence deficits, L. Chandra Kumar and the qualified conclusion.

PYQ 4 - 2019 Prelims - independent-regulator scrutiny

Question: In India, which of the following review the independent regulators in sectors like telecommunications, insurance, electricity, etc.?

1. Ad Hoc Committees set up by the Parliament
2. Parliamentary Department Related Standing Committees
3. Finance Commission
4. Financial Sector Legislative Reforms Commission
5. NITI Aayog

Select the correct answer using the code below:

A. 1 and 2 B. 1, 3 and 4 C. 3, 4 and 5 D. 2 and 5

Answer: A. Parliamentary committees can scrutinise regulators. The other named bodies do not constitute the ordinary parliamentary review route for independent sector regulators.

PYQ 5 - 2021 Prelims GS-I Q1

Question: With reference to the Indian economy, consider the following statements:

1. The Governor of the Reserve Bank of India (RBI) is appointed by the Central Government.
2. Certain provisions in the Constitution of India give the Central Government the right to issue directions to the RBI in public interest.
3. The Governor of the RBI draws his power from the RBI Act.

Which of the above statements are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Answer: C. RBI and the Governor's office are statutory under the RBI Act, 1934. The claimed constitutional direction-giving provision does not exist.

PYQ 6 - 2023 GS-II Q7 - 10 marks, 150 words

Question: Discuss the role of the Competition Commission of India in containing the abuse of dominant position by the Multi-National Corporations in India. Refer to the recent decisions.

Model answer: Section 4 of the Competition Act, 2002 prohibits **abuse**, not size or dominance alone. CCI first defines the relevant product and geographic market, assesses dominance and then tests conduct such as unfair conditions, denial of market access, tying or leveraging. It can order cessation, impose statutory penalties, modify conduct and use interim measures within the Act; appealable orders go to NCLAT and then the Supreme Court. This framework matters for digital MNCs because network effects, data advantages and ecosystem control can entrench market power, but consumer popularity or high market share alone cannot replace evidence of abusive conduct. Decisions involving digital-platform practices illustrate CCI's attempt to preserve contestability, while appellate scrutiny requires procedural fairness and legally supported market analysis. Effective control needs faster digital investigation, economic/data expertise, reasoned remedies and coordination without overlapping mandates.

Why this earns marks: It explains the statutory test, powers, digital-market relevance, limitations and appellate accountability instead of merely praising CCI.

How to improve this answer: Cite one accurately dated CCI order only if recalled with confidence; otherwise explain the decisional principle rather than inventing a case outcome.

Compression: Use five moves: Section 4 -> relevant market -> dominance -> abuse/remedy -> capacity and due-process reform.

PYQ 7 - 2025 Prelims GS-I Q60

Question: With reference to the Indian economy, consider the following activities:

- I. Production of crude oil
- II. Refining, storage and distribution of petroleum
- III. Marketing and sale of petroleum products
- IV. Production of natural gas

How many of the above activities are regulated by the Petroleum and Natural Gas Regulatory Board?

A. Only one B. Only two C. Only three D. All four

Answer: B. The PNGRB Act covers the listed downstream/midstream activities in II and III but excludes production of crude oil and natural gas.

Original solved Mains practice

M1 - 10 marks, 150 words

Question: Distinguish a regulator, a tribunal and a quasi-judicial decision.

Model solution: A regulator is a sector-governance institution empowered by statute to use a mix of rule-making, licensing, supervision, investigation and enforcement. A tribunal is primarily a specialised adjudicatory body deciding disputes or appeals within a statutory field. "Quasi-judicial" describes the character of a particular decision-one affecting rights after a duty of fair hearing-not the permanent identity of every act of an institution. Thus SEBI may make regulations, investigate and pass appealable orders; SAT is its specialised appellate tribunal. TRAI regulates, while TDSAT decides specified disputes and appeals. Courts retain constitutional review. The correct comparison therefore uses three axes: legal source, primary function and decisional character.

Why this earns marks: Precise three-axis classification plus two appeal-chain examples. **How to improve:** Draw a three-column table and avoid "all regulators are quasi-judicial." **Compression:** Definition sentence + SEBI/SAT + TRAI/TDSAT + judicial-review limit.

M2 - 15 marks, 250 words

Question: Regulatory independence without accountability can become unreviewable technocracy, while accountability without independence becomes control. Analyse.

Model solution: Independence protects expert, long-horizon decisions from case-specific ministerial and industry pressure. It is multidimensional: appointment, tenure, removal, finance, staff/data and decisional autonomy. But insulation alone can enable cognitive or industry capture. Accountability must therefore operate through a bounded parent Act, legislative reporting, consultation, disclosure, conflict rules, speaking orders, statutory appeals and constitutional review. Government may frame policy within law, yet should not dictate individual outcomes. Conversely, Parliament and courts should test legality and reasons without substituting day-to-day technical preferences. The design objective is calibrated independence: secure personnel and capacity combined with transparent procedures and external review.

Why this earns marks: It identifies both failure modes and converts them into a design solution. **How to improve:** Add a sector example and separate policy guidance from case-specific direction. **Compression:** Six independence axes -> two capture risks -> six accountability tools -> verdict.

M3 - 15 marks, 250 words

Question: Examine natural justice in the exercise of quasi-judicial power by regulators.

Model solution: As regulatory sanctions affect licences, property, reputation and market access, fairness ordinarily requires notice, disclosure of decisive material, opportunity to answer, absence of bias and a speaking order. A.K. Kraipak rejects a rigid administrative/quasi-judicial divide; S.N. Mukherjee connects reasons to disciplined review. Procedure remains contextual: urgent interim action or mass regulation may not demand a full civil trial, but a later effective hearing and statutory authority remain essential. Functional separation between investigation and decision, recusal and independent appeal reduce institutional confirmation bias. Courts on judicial review test jurisdiction, legality, fairness and constitutional rights; they do not invariably retry every technical fact.

Why this earns marks: Doctrine is linked to the actual regulatory cycle and correct review scope. **How to improve:** State the impugned stage before prescribing procedure. **Compression:** Five fairness elements + two cases + contextual limit + appeal/review.

M4 - 10 marks, 150 words

Question: Why is dominance not identical to abuse of dominant position under competition law?

Model solution: Dominance is economic strength in a relevant market; the Competition Act does not punish success or scale by itself. Section 4 is engaged when a dominant enterprise uses that position through prohibited conduct such as unfair conditions, denial of market access, limiting production or leveraging dominance into another market. CCI must therefore define the relevant market, establish dominance and prove abuse. This sequence prevents market share alone from becoming liability while allowing proportionate remedies against exclusionary or exploitative conduct.

Why this earns marks: It states the three-stage legal test and its policy rationale. **How to improve:** Add one digital-market feature such as network effects without treating it as proof. **Compression:** Relevant market ->

dominance -> abusive conduct -> remedy.

M5 - 15 marks, 250 words

Question: Evaluate the concentration of rule-making, investigation and adjudication in a single regulatory institution.

Model solution: Combining functions offers speed, expertise, informational continuity and a coherent sector strategy. Yet the institution that made a rule and investigated breach may approach adjudication with confirmation bias; affected persons may face undisclosed material or institutional self-vindication. Constitutional separation of powers does not mechanically require separate agencies for every administrative function, but fairness intensifies with sanctions. Separate investigation/adjudication wings, recusal, disclosure, proportional hearings, reasoned orders, statutory appeal and judicial review reconcile efficiency with legitimacy.

Why this earns marks: It avoids the false choice between total separation and unchecked combination. **How to improve:** Tie each safeguard to a named risk. **Compression:** Two benefits -> three risks -> six safeguards -> balanced verdict.

M6 - 15 marks, 250 words

Question: Regulatory capture is an institutional incentive problem, not merely corruption. Discuss.

Model solution: Capture can arise without bribery. Information capture follows dependence on firms for technical data; cognitive capture from repeated interaction and shared assumptions; revolving doors from career incentives; political capture from short-term executive pressure; and bureaucratic capture when the parent ministry treats a regulator as subordinate. Concentrated industry stakes often organise more effectively than diffuse consumers. Repair therefore needs a portfolio: independent data capacity, open consultation, consumer representation, conflict and post-employment rules, collegial decisions, published reasons, legislative scrutiny and appeal. Excessive insulation is not a cure because it can deepen industry access.

Why this earns marks: It explains causal channels and matches each with institutional repair. **How to improve:** Distinguish lawful expertise-sharing from capture. **Compression:** Five channels + diffuse-interest asymmetry + safeguard portfolio.

M7 - 10 marks, 150 words

Question: Compare statutory appeal with constitutional judicial review of regulatory action.

Model solution: A statutory appeal exists only where legislation provides it and may permit reconsideration of law, fact or remedy within defined limits. Constitutional review under Articles 226/227 or 32 safeguards jurisdiction, legality, natural justice, non-arbitrariness and rights; its scope is not identical to a merits appeal. Thus SEBI-SAT, CCI-NCLAT and CERC/SERC-APTEL are statutory chains, while High Courts retain their constitutional field. Finality clauses cannot remove the basic constitutional review floor.

Why this earns marks: It states source, scope and examples without claiming de novo review. **How to improve:** Mention L. Chandra Kumar for the constitutional floor. **Compression:** Source -> scope -> three chains -> finality-clause limit.

M8 - 20 marks, 250 words

Question: Propose an institutional framework for regulating digital platforms without conflating competition, consumer, data-protection and sectoral mandates.

Model solution: Begin with a proved harm-market foreclosure, dark patterns, unlawful data use, cyber risk or sector-service failure-and map it to the competent statute. Competition authorities address market power and exclusion; consumer law addresses unfair practices; data law addresses processing duties; telecom or financial regulators address sector risks. Coordination should use referral protocols, shared evidence standards and lead-agency rules, not an assumption that every platform is a public utility. Ex-ante duties require clear statutory authority, impact assessment, consultation and periodic review. Enforcement needs independent data expertise, disclosure of decisive material, reasoned proportionate orders and coherent appeals. Draft Bills, consultations and committee proposals must be dated and distinguished from operative law.

Why this earns marks: It provides an executable harm-to-law architecture and current-status firewall. **How to improve:** Add a compact matrix of harm, competent authority, tool and remedy. **Compression:** Harm diagnosis -> statute/agency -> coordination -> procedure -> appeal -> status firewall.